

Court No. - 39

Case :- WRIT - C No. - 30032 of 2021

Petitioner :- Radhe Shyam Bansal

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Onkar Nath

Counsel for Respondent :- C.S.C.,Alok Mishra

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Krishan Pahal,J.

Mr. Alok Mishra, learned counsel for the respondents prays for and is granted two days' time to complete the instructions.

Let the instructions be placed before this Court.

As prayed, put up this case as fresh on 18.11.2021.

Order Date :- 15.11.2021

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Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Onkar Nath

Counsel for Respondent :- C.S.C.,Alok Mishra

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Krishan Pahal,J.

In the written instructions supplied by Sri Mishra learned counsel for the respondents, it is categorically stated that there was a connection in the premise-in-question which was in the name of Dharmendra Raghav s/o Jaspal Raghav and the same had been disconnected on 26.08.2021 on account of outstanding electricity dues which is to the tune of Rs.49,359/-.

It is, thus, contended by the learned counsel for the respondents that new electricity connection cannot be given to the petitioner in the premises-in-question without clearance of the outstanding dues.

We may note the Clause 4.3 of the U.P. Electricity Supply Code, 2005 deals with the new connections and provide that the new connection cannot be provided in case of outstanding dues for consumption of electricity in premise-in-question.

The petitioner herein though claims to be permanent resident of house-in-question but has not given any detail as to how and when he came into possession of the house-in-question.

Be that as it may, in view of the categorical stand to the respondent with regard to the outstanding dues in the premise-in-question, we do not find it a fit case for issuance of mandamus.

The writ petition is, thus, found devoid of merit and hence **dismissed.**

Order Date :- 24.11.2021

Harshita